

**CV-25-003510 BANK OF AMERICA NA vs MARTINEZ, LOLO BANUELOS –
Defendant's Motion to Set Aside Default and Default Judgment, if Entered:
CCP 473(b) – DENIED with prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: There is no proof of service of the motion on file, the motion is untimely, and the declaration does not show good cause. The Court lacks authority to grant the motion. In addition, the motion is procedurally improper. The instant motion is Defendant's second motion to set aside default and default judgment. Defendant's prior May 14, 2026 motion to set aside default and default judgment was denied because no service of the motion was on file, the declaration did not show good cause, and the motion was untimely. Defendant did not seek leave to refile the same motion. The Court directs the clerk to give notice of this ruling and also of the Court's July 7, 2026 ruling. (Code Civ. Proc., § 1019.5.)

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